BY ORDER OF THE COMMANDER OF THE OSAN AIR BASE

OSAN AIR BASE INSTRUCTION 44-190

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Medical

OSAN AIR BASE DRUG ABUSE TESTING PROGRAM (PA)

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(Col Henry R. Jeffress, III)

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This instruction implements Air Force Manual (AFMAN) 44-197, *Military Drug Demand Reduction Program,* AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program,* and prescribes the organization, operation and areas of responsibility in establishing and explaining the Osan Air Base (AB) Drug Abuse Testing Program (PA). It establishes policy and procedures for the Drug Abuse Testing Program on Osan AB for all active duty military personnel and civilian employees occupying a Testing Designated Position (TDP). This instruction applies to all active duty and civilian members assigned to Osan AB, Republic of Korea (ROK) and all organizational units assigned to the base. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of IAW the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

This instruction requires the collection and maintenance of information protected by the Privacy Act of 1974. The authorities to collect and maintain the records prescribed are Title 10 USC 8013 and USC 3101. Privacy Act Statements are required by AFI 33-332, *Air Force Privacy and Civil Liberties Program*, AFI 33-322, *Records Management and Information Governance*

Program. "Air Force Privacy Act" Program will be incorporated in the body of the document or in a separate statement accompanying each document.

SUMMARY OF CHANGES

This instruction has been completely revised to implement new AFMAN 44-197 and AFMAN 44-198. Both of AFI 90-507 and AFI 90-508 have been superseded by AFMAN 44-197 and AFMAN 44-198. Additionally, this instruction now includes rate and selection guidance. This publication supersedes 51FWI 90-509, 26 Aug 2016.

1. General Purpose:

1.1. All military personnel assigned or attached to Osan AB, including geographically separated units and all civilians occupying a TDP are subject to random drug testing.

2. Responsibilities:

2.1. Installation Commander

2.1.1. The 51st Fighter Wing (51 FW) Commander ensures the drug testing program is executed in a manner consistent with Air Force standards and directives. 51 FW/CC or 51 FW/CV will chair the Cross Functional Oversight Committee (CFOC). The CFOC will convene no less than on a quarterly basis, more frequently if deemed appropriate, to assess status and effectiveness of drug testing program operations and to monitor the drug threat to Osan AB. The CFOC at Osan is subsumed under the Community Action Information Board (CAIB).

2.1.2. All instances of failure to report for testing or refusal to provide a specimen will be reviewed by the CFOC without identifying individuals. 51 FW/Judge Advocate (51 FW/JA) representatives will provide a summary of corrective actions taken by commanders.

2.2. Unit Commander

2.2.1. Serves as the appropriate official who directs that the drug test is conducted or arranges for someone to be available to exercise this authority on his/her behalf. In the event the commander, or personnel authorized to act on the commander's behalf, is not available the 51 FW/JA office has approved pre-signed letters with the caveat that the commander is informed of members selected for testing at some point.

2.2.2. Ensures all members are tested on day of selection unless member is in an authorized absence or mission essential status. Commanders will ensure that trusted agents update Drug Demand Reduction Program (DDRP) personnel no later than 1300 hours with confirmation of who was notified for testing and members unavailable with return dates. Members are to be tested upon their return to duty.

2.2.3. First Sergeants will bear the responsibility of escorting members who report without their military ID card and/or order letter to retrieve documents to complete testing. First Sergeants may, at their discretion, appoint someone to escort member to retrieve documents.

2.3. Drug Demand Reduction Program Manager (DDRPM)

2.3.1. Responsible for all aspects of and is the focal point for drug testing issues. DDRPM supervises all Drug Testing Program Administrative Manager (DTPAM) personnel assigned to DDRP.

2.3.2. Ensures timely notifications of positive results upon receipt of Medical Review Officer (MRO) report. Notification will be made first to the individual's commander/first sergeant, then to the Air Force Office of Special Investigation (OSI), Staff Judge Advocate (SJA), and Alcohol Drug Abuse Prevention and Treatment (ADAPT) program personnel. In the DDRPM's absence, the DTPAM will be responsible for making notifications as outlined.

2.4. Drug Testing Program Administrative Manager (DTPAM).

2.4.1. Strictly follows established local Operating Instructions (OI) and utilizes checklists to eliminate untestable specimens. Enforces all Department of Defense (DoD), Air Force, and local policies at all times to maintain the integrity of the program.

2.4.2. Assumes DDRPM's duties and responsibilities in his/her absence.

2.5. Trusted Agent

2.5.1. Trusted agents must be appointed in writing by commander and receive training either by attending a live session or an on-line presentation prior to assuming duties.

2.5.2. First Sergeants are not required to be appointed in writing, but are authorized to receive rosters and notify individuals of their selection for testing.

2.5.3. Must safeguard drug testing files and secure under (double-lock) when not in use. Files must be maintained for six months once all members have been tested. Each unit is responsible for maintaining a tracking mechanism for members who have been selected but not available for testing to ensure members are tested upon their return to duty. Coordination is accomplished between unit's Trusted Agent, First Sergeant, or Commander and DDRP personnel.

3. Installation Testing Rate and Selection

3.1. A secondary pool of individuals, comprised only of those service members who have not yet been tested, will be created and periodic selections from this pool will be conducted.

3.1.1. Using the Annual Compliance Tool on the Drug Testing Portal, download the roster of assigned personnel that have not been tested.

3.1.2. Personnel will be selected using the Random Testing (IR) premise at an appropriate rate in order to achieve compliance with established directives.

3.1.3. Personnel selected and not available for testing, with a valid reason, will have their selection cancelled at the close of the testing day.

3.1.4. Selection of personnel from the secondary pool will begin during the first quarter of the fiscal year.

3.1.5. Regardless of how often the annual compliance tool is used, it is critical to continue regularly selecting from the installation's full pool to ensure the deterrent effect is maintained.

3.2. The local policy concerning use of the Air Force Drug Testing software to track individual(s) unavailable for testing because they cannot be located at the time of testing will be as follows:

3.2.1. Personnel will be retained in a "due back" status if the reason provided by the Trusted Agent/Commander is:

3.2.1.1. Leave/Off-Duty

3.2.1.2. Shift Work/Flying Status

3.2.1.3. TDY/Deployment (less than 60 days remaining)

3.2.2. Personnel will have their testing selection cancelled if the reason provided by the Trusted Agent/Commander is:

3.2.2.1. TDY/Deployment (greater than 60 days remaining)

3.2.2.2. Permanent Change of Station (PCS)

3.2.2.3. Retired/Separated

3.3. Cancellation of a selection for testing does not change an individual's eligibility for testing on a future date and is intended to be used as a tool to assist in the management and improvement of tracking of the DDRP.

3.4. Due to the reduction in the use of social security numbers, the testing premise of "Accession Testing" (NO) will be used for all personnel that require testing and are not assigned a DoD ID number, regardless of the actual purpose for testing.

3.5. Specimens submitted for testing that are deemed untestable by the drug testing laboratory due to leakage will require retesting because of the fatal discrepancy code.

4. Other Than Random Testing

4.1. In all instances when other than random drug testing is considered, the commander or designated representative must consult with SJA prior to initiating other types of testing. Member must report to designated collection site with an order letter and military ID card. If request is made during normal duty hours (M-F, 0730-1630), specimen collection will be conducted at Bldg. 818, DDRP.

4.1.1. Command-directed testing should be used as a last resort, and commanders should consult with 51 FW/JA prior to directing a member for urinalysis. Results obtained through commander-directed testing cannot be used to take action under the Uniform Code of Military Justice (UCMJ) (e.g., court-martial or Article 15), nor can results obtained through commander-directed testing be used to adversely characterize administrative discharges (e.g., under honorable conditions, under other than honorable conditions). However, results from commander-directed testing may be used to support administrative actions (e.g., letter of reprimand) and promotion propriety actions. Airmen who abuse drugs are subject to discharge under AFI 36-3208, *Administrative Separation of Airmen,* and paragraph 5.54.

4.1.2. Consent testing requires AF Form 1364, *Consent for Search and Seizure,* which may be downloaded from the Air Force e-Publishing website: **http://www.e-publishing.af.mil/**. This form requires two witness' signatures in addition to that of the member. Probable cause testing is preferable to consent testing because the member may revoke his or her consent at any time, including after the sample has been collected.

4.1.3. Probable cause testing are authorized seizures which can be ordered by a commander who has control over the person to be tested or the installation commander. This type of testing requires AF Form 1176, *Authority to Search and Seize*, which is also available on the Air Force e-Publishing website: **http://www.e-publishing.af.mil/**.

4.2. Unit Sweeps

4.2.1. Commanders requesting a unit (group/squadron/flight/element) or dorm sweep must provide the DDRP Office two (2) duty days advance notice for coordination. Consultation with SJA will be accomplished by unit commander or designee in addition to advising the 51st Medical Group (51 MDG)/CC prior to requesting unit or dorm sweep.

4.2.2. Coordination will be accomplished between DDRP personnel and unit key personnel requesting the sweep.

4.2.3. Unit First Sergeant will secure sufficient manpower for conducting unit sweep through coordination with installation Command Chief.

5. Afterhours Collections

5.1. Units or investigators that require drug testing after hours on either weekends or holidays will contact the on-call DDRP staff member via the Command Post or Emergency Room who will have the on-call roster. Specimen collection will be completed at Building 818, DDRP main office.

5.1.1. Specimen collection will be coordinated through the on-call DDRP staff member with the unit official or investigator. The unit or investigator will bear the responsibility of providing a credible same sex observer and ensure an order letter is completed and the original ready to be received by the DDRP staff member prior to arriving to Building 818 for specimen collection.

5.2. Units or investigators requiring drug testing Sunday through Thursday after 1630 will contact the DDRP office the next duty day to coordinate testing. Observers are available Monday through Friday from 0730 to 1630 and are on-call for after hours drug sweeps only.

6. Geographically Separated Units (GSU)

6.1. Each GSU will have a primary and an alternate DTPAM appointed in writing. Each DTPAM must receive hands-on training and written instructions from DDRP personnel prior to assuming responsibility for their respective units.

6.2. GSU DTPAM will fax or scan a copy of DD Form 2624, *Specimen Custody Document – Drug Testing*, to DDRP prior to preparing specimen for shipment. DDRP will review DD Form 2624 upon receipt and provide feedback to GSU DTPAM noting that all chain of custody entries have been properly annotated on DD Form 2624.

6.3. GSU DTPAM will work closely with DDRP to ensure untestable error rate remains under the Air Force standard of less than one percent.

6.4. DDRPM will conduct routine on-site visits as deemed appropriate.

7. Civilian Drug Testing

7.1. Random drug testing will occur for 50% of civilians in TDPs annually.

7.2. Individuals that are not present for duty or in a mission essential status on the day of selection will be tested upon their return to duty. The individual's supervisor and DTPAM will coordinate testing.

7.3. DTPAM will follow up with supervisor if no contact is initiated by supervisor to coordinate testing of individuals not available for testing on day of selection but have since returned to duty.

JOHN F. GONZALES, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 33-332, *Air Force Privacy and Civil Liberties Program*, 10 March 2020

AFI 36-3208, *Administrative Separation of Airmen,* 9 July 2004

AFMAN 44-197, *Military Drug Demand Reduction Program,* 30 July 2019

AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program,* 24 January 2019

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

AF Form 1176, *Authority to Search and Seize*

AF Form 1364, *Consent for Search and Seizure*

DD Form 2624, *Specimen Custody Document – Drug Testing*

Abbreviations and Acronyms

51FW—51st Fighter Wing

51FW/JA—Judge Advocate

51MDG—51st Medical Group

AB—Air Base

ADAPT—Alcohol Drug Abuse Prevention and Treatment

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

CAIB—Community Action Information Board

CFOC—Cross Functional Oversight Committee

DoD—Department of Defense

DDRP—Drug Demand Reduction Program

DDRPM—Drug Demand Reduction Program Manager

DTPAM—Drug Testing Program Administrative Manager

GSU—Geographically Separated Units

IAW—In Accordance With

MRO—Medical Review Officer

OI—Operating Instructions

OPR—Office of Primary Responsibility

OSI—Office of Special Investigations

PCS—Permanent Change of Station

RDS—Records Disposition Schedule

ROK—Republic of Korea

SJA—Staff Judge Advocate

TDP—Testing Designated Position

UCMJ—Uniformed Code of Military Justice